
Indigenous Law Institute

Pu'uhonua Peace Pact

Nalani Minton and Steven Newcomb • May 15, 1999 • <https://indigenouslawinstitute.com/peacepact/>

Submitted to The Hague Appeal for Peace May 11-15, 1999 The Hague, Netherlands

The Pu'uhonua Peace Pact

Submitted to The Hague Appeal for Peace May 11-15, 1999

The Hague, Netherlands

Prepared by Nalani Minton* and Steven Newcomb**

on behalf of

The Indigenous Law Institute, The Kanaka Maoli Tribunal Komike, and The Fourth World Center for the Study of Indigenous Law and Politics

*Nalani Minton is a Kanaka Maoli representative of the Tribunal Komike on issues of self-determination and the advancement of cultural law as an instrument of global peace and recovery from colonialism. She is also a board member of the Indigenous Law Institute, co-publisher of Ku'e: The Anti-Annexation Petitions of 1897-98, as well as producer of cultural documentaries on cultural systems of self-governance that pre-date colonialism. (nalanima@aol.com)

**Steven Newcomb (Shawnee/Delaware) is Director of the Indigenous Law Institute, and author of "The Evidence of Christian Nationalism in Federal Indian Law," published by the New York University School of Law in the Review of Law & Social Change. Since 1981, Newcomb has been researching the origins of U.S. federal Indian law, international law, and issues of Christian European and state colonialism. 1430 Willamette #608 Eugene, Oregon 97401 (541) 343-3091 (stv4newcomb@aol.com).

The Pu'uhonua* Peace Pact

A Declaration of Vision from the Cultural and Spiritual Perspectives of Indigenous Peoples

"Government without the consent of the governed is the very definition of slavery."

"Real Power is our relationship with the earth. We are the earth... [human.beings]...are just different shapes and forms of the life of the earth,...no more or less than the trees ...[and]... stones...human physical, being spirit. Authority is not power. Authority is something man creates. All authority is usually based upon aggression or implied aggression. Whoever has the most money has the ability to [buy] authority, but that is not power. The industrial technological authoritarian political system that we live under, has developed a way to mine the human spirit just as it mines all natural resources. We are being mined in the same way that [oil] is mined, out of the earth. The pollution of the air, of the water, ...of the environment ...comes from this plundering and mining of the planet in an irresponsible manner. Every fear, every doubt, every insecurity, every way that we ever beat ourselves up inside of our own heads,—that is the pollution left over from the mining of our spirit ...by the confusions that are in our minds. There is no existing cure to the problem, the disease, than the one we create by using our intelligence as intelligently and as clearly as we possibly can. Either we know or we don't know. Our ancestors are our power connection to knowledge. Real Power is what we come from. It is part of the natural order of the universe. Real Power has no limitations. Real Power cannot be removed from us, it is a natural part of us. Any relationship we will ever have to Real Power is our relationship to the earth. [We must re-establish]...our connection to that basic reality, we must take care of the earth."

(Excerpted from the spoken words of John Trudell at the memorial for Earth First activist Judi Bari, April 26, 1997.)

E mau ke ea o ka 'aina i ka pono, the life and spirit of the land is protected by the spiritual relationships of the People in maintaining Life sustaining cultural systems and cosmic intelligence.

* A pu'uhonua is a place of being, refuge, peace and safety. The new paradigm of world peace must be a living realization of the Earth as such a place.

Introduction

We, as representatives of the Indigenous Law Institute, the Kanaka Maoli Tribunal Komike, and the Fourth World Center for the Study of Indigenous Law and Politics, welcome the opportunity presented by the Hague Appeal for Peace to help create a new paradigm of peace that respects the existence and the collective, inalienable rights of all peoples of the world. For thousands of years, and to the present day, the Indigenous nations and peoples of the world have served as protectors of waters, lands, oceans, seeds, foods, medicines, life forms, and life systems of the natural world. However, because the present economic industrial world system, rooted as it is in the pathology of Western colonialism, militates against Indigenous cultural systems of right relationship with the natural world, an Appeal for Peace, from our perspective, must also address the issue of colonialism as a culture of war. A peaceful world requires an end of all forms and manifestations of colonialism so that the cultures of peace that predate colonialism may thrive and flourish and a new global culture of peace may be created.

Original Independence, Indigenous Cultures of Peace, and Self-Determination

Originally, Indigenous nations and peoples were entirely free and independent, inherently and naturally self-determining throughout time, living self-sustaining ways of life in our homelands, in keeping with the patterns of right relationship and community with one another, and with all life. For countless generations we have spoken our own languages, honored our child-rearing practices and family systems, and practiced cultural decision-making based on an acknowledgement of the needs of future generations, and the profound ecological interdependency of nature. We have inherited from our ancestors knowledge and wisdom accumulated over thousands of years of living as distinct peoples of cultural integrity. Accordingly, we as Indigenous peoples have many gifts and vital contributions to offer other peoples of the world toward the global effort to live life in a balance that profoundly cares for and sustains all life in a Sacred Circle of ecological and cultural renewal. The protection of both cultural diversity and bio-diversity are essential to the survival of the earth, all peoples, and all life.

According to Kanaka Maoli traditions of Ka Pae 'Aina Hawai'i, human beings are not the law-makers. The spiritual life givers of land and water that sustain all life are the law givers, and human beings have the responsibility to harmonize their life through a sacred response to the laws of the natural world, thus honoring the sustaining of life energy and life renewal systems throughout time. Laws of renewal that follow from these cultural practices include: asking permission before taking anything needed from the natural world, taking only what is immediately necessary, sharing with others what is taken, not wasting or contaminating, respecting the needs of all living generations and respecting the needs of all generations to come.

Ka 'uhane lokahi describes the well being of spirit in harmony within oneself and with all levels of community, including the cosmos. When people live in this state of well being they interact in right relationship with themselves, their families, their communities, and the natural world. This is being pono. Each person carries personal responsibility to create and live pono relationships on all levels. Pono relationships are nourished by the loving compassion of sharing and caring for all life as family with aloha. Aloha is the energy of synchronous relationship between mind, heart, body and soul by which the alignment of each pono person connects them in right relationship with the whole universe. When aloha becomes the energy of the people, life is sustained within and without. We say that by caring and sharing, called malama, the people carry light. A natural state of enlightenment based on a profound practice of caring and sharing is called malamalama. This way of life honors the reality of i ke kahi i ke kahi, one shared consciousness which connects and integrates all life as one living intelligence. In this way, human beings increase the mana, the life force energy that they were born with, through the good deeds of their lives which honor right relationship, and are spiritually guided in conscious communication with the whole continuum of life. This natural state of being, meaning and life purpose restores lokahi, harmonious relationship, health, wellness and life renewal.

Natural laws of renewal are practiced within the ahupua'a systems of Ka Pae 'Aina Hawai'i. Ahupua'a systems are natural land systems, including water systems, land formations, and growing zones of various elevations, from the cloud zones of the high mountains, through the forested and open plains areas, downward to the coastal areas and reefs, and into the near shore and deep ocean fishing waters. Within this way of life, the family systems within

each ahupua'a evolved intelligent responses to the unique ecosystems and life systems of the 'aina, that which feeds, nourishes and sustains life.(in English referred to as "land"). These natural communities also provide what is needed to sustain life for everyone and are the foundation of the evolution of creating abundance as an integral responsibility of human beings in a culture based on sharing. The spiritual and genealogical relationship of the people to the 'aina is the source of the culture and the cultural integrity, values, practices and skills that sustain the culture. The cultural identity of the people comes from the 'aina and is profoundly expressed as ea, the life, breath, spirit. Ea has been inadequately equated with the Western term "sovereignty".

Ku'o ko'a expresses the responsibilities of the people to care for, protect, and enhance the natural world. Ku'o ko'a is the Kanaka Maoli meaning of inherent self-determination. For families living within an ahupua'a, community decision-making is a way of life. Inclusion of representatives from all areas of cultural life in decision making councils of each ahupua'a creates a foundation for consensus and common understanding that sustains peace and harmony in community life. Ahupua'a councils were active for thousands of years prior to the imposition of hierarchical governing by the ali'i (ruling chiefs) and subsequent colonizers. Some ahupua'a communities survived colonialism, and others are now being revived. Ahupua'a councils are some of the earliest forms of cultural self-government in Ka Pae 'Aina Hawai'i and are the means by which Kanaka Maoli live spiritually within a culture of peace, abundance and life renewal.

Another example of an Indigenous culture of peace is found in the Wooke Sakowin (seven laws) of the Oceti Sakowin (Great Sioux Nation). Living with these seven laws results in peace and friendship, known as Wolakota. The laws are: honor and respect; compassion and pity; caring and sharing; humility; to carry the welfare of the people in one's heart; bravery and courage; seeking wisdom and seeking understanding. The Oceti Sakowin prayer of mitakuye oyasin ("all my relations") is an acknowledgement that all life, including the spirit world, is family. It is an acknowledgment of life's sacred web of interconnectedness and interrelationships, within which human beings are neither higher nor lower than any other life forms. According to the Oceti Sakowin, human beings have a sacred responsibility to honor the ongoing processes of life by living with the seven laws in a spiritual relationship with all living things. Black Elk, a holy man of the Oceti Sakowin, described a three-fold peace that comes from living in a sacred manner. The first peace is that which is found within one's heart upon realization of oneness with the universe and all its powers. The second is that which is shared between two or more people. And the third is that which is shared between two or more nations. But none of these is possible without first finding the peace within one's heart that comes with the realization of oneness with the universe and all its powers.

The Basic Foundations of Colonialism, International Law, and U.S. Indian Law

More than five centuries ago, in the earliest known example of globalization, the European nations of Western Christendom began to conquer other parts of the world. They did so based on an assumed authority and domination over the entire earth without any regard for the destruction of life's delicate balance, or for the suffering of the hundreds of nations they subjected to genocide. An Appeal for Peace is now made necessary at the dawn of the 21st century because of the present day consequences of a global culture of war and colonialism dating back to the fifteenth century. The culture of war has set into motion and institutionalized destructive policies through the laws and processes of domination, militarism, subjugation, and exploitation. Therefore, an Appeal for Peace must include the global eradication of colonialism in order to recover from the devastating traumas that colonialism inflicts on the earth's ecological systems, peoples, and nations.

Colonialism is a culture of war, violence, domination, exploitation and genocide. It is the forceful imposition of imperial or state laws, policies and controls by colonial settlers, in the homelands and territories of free and independent peoples whose existence pre-dates the arrival of the colonial settlers. Colonialism is waged in order to secure and protect the settlers' self-interests, without regard for the survival of the original peoples and nations. Colonialism involves the effort to destroy and remove the pre-existing peoples and their culture from the land for the sole benefit of the dominating settler population. Colonialism has devastating social, cultural, and environmental consequences because it is based upon the insatiable needs of a market economy and the industrialization of peoples and environments, in order to consolidate wealth and resources by commodifying all life forms as property. Colonialism is the forceful domination of peoples, nature and life "which may exist within a continuous land area, and even within a politically and geographically homogeneous state, such as Australia and the United States, and does not necessarily involve long distances." (Dr. Laura M. Thompson, *Steps Toward Colonial Freedom*, 1943,

p. 4) Although colonialism sometimes involves long distances, it also occurs when the colonizers currently do not come from some distant region separated by a body of blue water from the colonized.

Colonialism is a culture of genocide because it results in the utter destruction of entire peoples. Genocide is the most extreme form of war waged by one people against another. It is based on racism and bigotry by which entire peoples and their cultural ways of life are dehumanized and destroyed. When a colonial settler people establish a system of domination over another people, they generally create genocidal laws and policies designed to physically eliminate Indigenous cultures and peoples, to prevent births within their populations, and to indoctrinate and condition the children to participate and assimilate into the dominant colonial establishment, or else to self-destruct. While massacres are the most obvious and horrendous evidence of genocide, genocide also includes state policies that organize against the cultural and physical survival of Indigenous peoples and their ability to live and pass on their culture and way of life in their own territories and homelands to new generations. Also genocidal is the enforcement of colonialism, racism, violence and intimidation through state policies of coercive assimilation of Indigenous peoples into the general population and urban sectors of the dominating civil society.

From an Indigenous peoples' perspective, an appeal for world peace must include an examination of the origins and present day manifestations of colonial and genocidal behavior that have created sweeping contemporary policies and practices that contradict the long-term survival of life on earth. Further, all the peoples of the earth need to create processes of recovery and healing while preventing new forms of colonialism, and their intensification, based on the racist assumed superiority of some nations or peoples over all others. Global peace will remain unattainable so long as the coercive imposition of laws of discovery, conquest, domination, assimilation, and dehumanization remain encoded in international law and in the domestic legal systems of specific states, such as are found in United States federal Indian law.

The colonialism and genocide that Indigenous peoples have been subjected to for over five centuries are rooted in the era of Western Christendom. Behind Western Christendom's early conquests was a long succession of popes at the Vatican in Rome. These popes, in eighteen documents called "papal bulls" authorized rights of discovery, conquest, extermination, genocide, and subjugation to the Christian European colonizers of that time. The king of Portugal, for example, was instructed to "capture, vanquish, and subdue" infidel peoples, "to put them into perpetual slavery," and to take away "all their possessions and property." In 1493, shortly after the first voyage of Cristobal Colon to the Americas, Pope Alexander VI issued the Inter Cetera bull of May 4th, in which he called for "barbarous nations" to be "subjugated" or overthrown so as to "propagate" the "Christian Empire."

The Inter Cetera bull, and many preceding papal bulls, became the cornerstone of a world system of colonization involving many empires of Christendom, such as Portugal, Spain, England, France, Holland, and Russia. Much of the present system of international law relating to Indigenous nations and peoples was developed on the basis of these papal documents and on the colonial customs shared by the empires of Christendom. Henry Wheaton, in his *Elements of International Law*, expressed the status of Indigenous peoples in relation to the "States of Christendom" when he wrote, "The heathen nations of the other quarters of the globe were the lawful spoil and prey of their civilized conquerors." The empires or states of Christendom became known as the Family of Nations in Europe, who were later joined by the United States and other nations such as Japan, Turkey, and China. The law of nations from which international law was gradually developed, emerged from this society of colonizing powers, eventually led to the failed League of Nations, and, ultimately, to the United Nations system of states. The present system of world powers such the United States (now considered the world's sole superpower) Canada, Australia, and New Zealand, in tandem with powerful transnational corporations, derive their framework of consolidating the world's resources and subjugating the world's peoples from Christendom's prototype of empire and colonization.

Current international trends signal a new intensification of colonialism. Evidence of these trends includes the World Trade Organization (WTO), the International Monetary Fund (IMF), the Multilateral Agreement on Investments (MAI), the Global Agreement on Trades and Tariffs (GATT), the North American Free Trade Act (NAFTA), the Asian Pacific Economic Council (APEC), the Human Genome Diversity Project, and the Biodiversity Convention. Further evidence is the move towards the corporate patenting of all life forms as property within the global trade agreements of transnational corporations and nation-states. Through such international agreements, by conglomerates forcing economic globalization on the world, a framework has been created that bypasses the consent of all peoples. Through the resulting international system of plunder based on selective monopolization through massive corporate mergers, transnational corporations have exempted themselves from environmental

and labor laws, and protective collective agreements like the Law of the Sea to create a lawless world regime that inflicts ultimate devastation on the earth. In the first trade agreements between the US, the UK and China, based on cultural and intellectual property rights, the whole subsurface of the Pacific Ocean floor as “open mining”, neither defined as land or water and therefore not subject to the protective limits of governments, nations, and the Law of the Sea.

Proposed Remedies and Recommendations

A variety of international documents and legal instruments already recognize that “all peoples” of the world have the right of self-determination, and therefore have the right to live free of colonialism and colonial rule. The United Nations Charter, the International Covenant on Civil and Political Rights (ICCPR), the International Covenant on Economic, Social and Cultural Rights (ICESCR), the United Nations Declaration on the Granting of Independence to Colonial Countries and Peoples (UNGAR 1514) and the Draft Declaration on the Rights of Indigenous Peoples, recognize that all peoples have the right of self-determination. Colonialism is an international crime because it is an impediment to world peace. Peoples forced against their will, and without their consent, to live under conditions of colonization, colonialism, and alien rule, will always strive to free themselves from oppression.

The human rights violations of “all peoples” are some of the most notorious root causes of war. Human rights principles inherently protect the rights of all peoples by restoring the rights of those whose rights have been violated by the current system of nation-states. The nation-state system as it evolved from the Law of Nations was created to enforce colonialism, war, violence and genocide. The UN system was created to eradicate colonialism. Therefore, the nation-state system of colonialism must be replaced in order to eradicate colonialism. Self-determination for all peoples of the world must become the new decolonization process. It is a mandate of the United Nations Charter that colonialism be eradicated by the year 2000. Therefore, one task of the world community of peacemakers will be to recognize all new forms of colonialism based in economic globalization. In the interest of expanding human rights and humanitarian law to promote global peace, the world community must make a firm commitment to eliminate colonialism in all its current and projected forms.

Toward this end, we must openly acknowledge that the United Nations and the international law system operates on the basis of a major contradiction. At the same time that the international human rights framework upholds the right of all peoples to self-determination, the Member States of the world community are attempting to deny that Indigenous nations and peoples have an already existing right of self-determination by continuing to hold them under neo-colonial rule. By doing so, Member States themselves are directly contradicting the United Nations’ mandate to eradicate colonialism. The high ideals stated in the language of humanitarian principles are eroded by policies of state self-interest based on the assumption that the right of self-determination is exclusively a right of Member States who determine through a circuitous process of decolonization by which they control which peoples, and to what extent they will allow limited decolonization. The UN Decolonization Committee may succumb to a contrived “end of colonialism” that will discontinue the current UN process of decolonization rather than fulfill its mandate to eradicate colonialism by the year 2000.

Remedies and Recommendations

That the international community, through the Hague Appeal for Peace Agenda for Peace and Justice for the 21st Century, support the expansion and application of human rights and humanitarian law, and, explicitly recognize the inalienable rights of Indigenous peoples to inherent sovereignty and self-determination.

That it be the official policy of the United States, other UN member states, and the international community that Indigenous nations and peoples be recognized as having the same right of self-determination as “all peoples” in international law. Such recognition is in keeping with the UN Draft Declaration on the Rights of Indigenous Peoples, the ICCPR, ICESCR, the UN Charter, the Universal Declaration on Human Rights, UNGAR 1514, the Genocide Convention, and other international documents that recognize and affirm fundamental protections for the rights of all peoples.

That in order to eradicate colonialism, as is mandated in the UN Charter, for the establishment of global peace, the universal application of self-determination for all peoples be affirmed, the legitimacy of states challenged and the world system of colonialism abolished.

That, as expressed in the UNESCO Barcelona Statement of November 1998, the right of self-determination for all peoples be peacefully implemented and applied equally and universally as an instrument of global peace and conflict resolution in order to foster cultures of self-determination and peace.

That the Hague Appeal for Peace support the UNESCO initiative to promote the use of the existing human rights agencies of the UN and other international organizations to create a process at the UN Commission on Human Rights for implementing the right of self-determination of all peoples, and that the Decade for the Rights of Indigenous Peoples be extended within the upcoming Decade for Non-violence in order to provide a transition period of time to promote global understanding and the creation of just remedies, including a relevant, cultural decolonization process for Indigenous nations and peoples, and all peoples not yet free of colonial domination, based on their own cultural processes and free and informed consent.

That financial and organizational support be forthcoming from the international community for regional forums for those peoples struggling for self-determination; that such forums be developed as venues where Indigenous peoples may prepare to raise issues and specific cases before the UN Commission on Human Rights, and before other relevant international bodies in an effort to advance their own cultural remedies, and to correct the violations of international human rights law.

That these regional forums represent the cultural foundations for restoring self-determination through cultural education, through the creation of cultural economies, as well as through the revitalization of Indigenous languages, customs and laws, in order to promote a more informed and profound interaction with the processes for implementing rights of self-determination to all peoples within the UN Human Rights Commission and the UNESCO initiative.

That the UN Draft Declaration on the Rights of Indigenous Peoples be removed from the UN Intersessional Working Group of Member States, and that it then be submitted regionally to Indigenous peoples as a central documents for review, amendment, agreement, and acceptance regarding their rights of self-determination, and that the UN Draft Declaration for the Rights of Indigenous Peoples be protected by the UN Human Rights Commission as the expression of the minimum standard for the rights of Indigenous nations and peoples.

That the reporting by Indigenous representatives at the UN Human Rights Commission during the past twenty years, be collected, catalogued and preserved as a permanent record of the existing and ongoing human rights violations against the physical and cultural survival of Indigenous nations and peoples, as evidence of the violations against Indigenous peoples' rights to self-determination and inherent sovereignty, and as evidence of the continuing genocide of colonialism against Indigenous peoples.

That International Peoples' Tribunals be organized to create a process of accountability to support the recovery of Indigenous peoples from historical and devastating traumas due to the devastating effects of intergenerational colonialism, and the proliferation of cultures of self-determination and cultures of peace to offset and balance the imbalances resulting from patterns of global domination. That documentation of these tribunals be forwarded to the UN Human Rights Commission to support the implementation of self-determination for all peoples.

We recommend that the 1948 Convention on the Prevention and Punishment of Genocide be applied to the situations and conditions of Indigenous nations and peoples in order to promote global peace. To this end, peace education must include the common understanding that the crime of genocide means any of the following acts committed with the intent to destroy, in whole or in part a national, ethnical, racial, or religious group by:

- a) Killing members of a group;
- b) Causing serious bodily or mental harm to members of the group
- c) Deliberately inflicting on the group conditions of life that bring about its physical destruction in whole or in part
- d) Imposing measures intended to prevent births within the group
- e) Forcibly transferring children of the group to another group

As stated in Resolution of Indigenous Participants to the 14th Session of the UN Working Group on Indigenous Peoples on a process of reporting and reviewing continuing genocidal actions, violations of the Genocide Conventions and policies against the rights and survival of all peoples and nations must develop mechanisms for accountability and for bringing an end to genocide in all its forms and manifestations.

We recommend that an International Court of Justice in cooperation with the formation of the International Criminal Court be convened to address acts and policies of genocide against Indigenous nations and peoples, and to recommend effective remedies. Also, that provisions be created for the inclusion of evidence from Indigenous Peoples' International Tribunals in the International Criminal Court proceedings.

That the specific recommendations included within the Hague Agenda for Peace and Justice to counter the adverse effects of globalization, and to eradicate colonialism and neo-colonialism be implemented by the world community.

We call upon the international community and the Human Rights Commission to acknowledge that the policies and practices of economic globalization represents an intensification of colonialism and continuing genocide that constitute a war of aggression against all life. We, call for the Human Genome Diversity Project to be discontinued, and for the Biodiversity Convention to be revised to remove all threats to Indigenous peoples and communities. We call on religious communities, human rights, social justice, and environmental organizations, funding agencies, individuals and institutions to refuse to participate, fund, or provide other assistance to the Human Genome Diversity Project and any related programs.

We condemn the exploitive use of instruments of intellectual and cultural property rights, patent laws, and all instruments of economic and trade manipulation such as NAFTA, GATT, APEC, MAI, as crimes against humanity under the guise of legitimacy, validity and law. We therefore appeal to the world community, which suffers comprehensive violations and global denial of consent, to disavow and create universal legal standards against the institutionalization of exploitation, poverty, dependency and war through economic globalization. The World Trade Organization, transnational corporations, the IMF, the World Bank, and the organized assistance of governments and military forces which continue to exploit peoples and natural resources for profit by imposing Western deception and theft on the natural world must be held accountable for their crimes and effectively ended.

That the world system of states be replaced in the 21st century by a new paradigm of peace premised on the existence and rights of "all peoples." New cultural systems are needed to replace the culture of colonialism, violence, war and genocide. It is necessary to reorganize globally according to a world community of "all peoples," while reorganizing regionally according to local communities of humanitarian and cultural integrity based on viable ecological sustainability. A new, world system of peoples is needed to replace the old, world system of states. To create a new level of peaceful responsibility to the human family, to the earth, and to all living things, this new world system of peoples must operate on the basis of the continual renewal of all life.

That terms such as "Indigenous peoples" be used temporarily to correct inequalities and injustices, broaden human rights, and address concerns and violations of peoples previously dehumanized and excluded from international remedies. That the term "Indigenous peoples" not be used to rename or justify racism on a global level, and be understood within the context of the term "all peoples," as it is applied to secure the rights of all peoples of the world. That the term "all peoples" include the recognition of the diversity of names, languages, values, cultures, histories, economies, social and political systems which bring dignity to the reality of "all peoples."

That the world community call upon Pope John Paul II, and the Vatican, to formally revoke the Inter Cetera bull of May 4, 1493, which has stood for over five centuries as the cornerstone of the old world system of colonialism, colonization, and domination which must now be replaced so that there truly can be peace and justice in the 21st Century in order that a new paradigm of world peace based on the global community of "all peoples" may be realized. That Christian missionary evangelization, proselytization, indoctrination, and moves toward assimilation through deculturalization be ended.

That the world community support the convening of Peoples' International Tribunals to challenge and document the continuing existence and violations of colonialism and to create just remedies and recommendations to correct the injustices inflicted against the people. Such Peoples' International Tribunals affirm that law must have a moral component and that it is immoral for those who presume colonial authority to suppress the people or the truth. A recognized value of such tribunals is that oppressed peoples have the right to disassociate themselves from the crimes and definitions that have been developed by their oppressors to serve only the interests of the oppressors. Such tribunals are not only designed to punish criminals, but also to deter future crimes, such as the subordination of human rights beneath the geopolitical economic interests of the most militant nation states. Such tribunals bring before the court of world opinion historical, moral, political and "legal" pressure against the

continued wrongs of colonialism. Indigenous peoples and nations have a significant contribution to make through tribunals to the reform of international laws, instruments and standards by expanding humanitarian law through cultural laws, principles, values, conflict resolution practices and traditions that predate colonialism and western constructs. Such tribunals educate the world about the wrongs of colonialism and bring full dignity to processes of becoming independent of the genocidal practices of colonialism and evolving interdependent relationships and responsibilities between nations and peoples and the natural world.
